ARTICLES

THE NATIONAL AERONAUTICS AND SPACE ACT OF 1958: REVISITED

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THE PRELUDE

When the Soviet Union launched the first man-made satellite (*Sputnik*) into space on October 4, 1957, it was a great surprise, shock, and bitter disappointment for those who believed that the United States would be the first to accomplish this feat.

This event led to the creation of a civilian space organization within the United States. It also led to a much more intense competition between the two powers. Consideration should, however, be given to prior events which are relevant.

We start with the activity of the International Council of Scientific Unions (ICSU) in 1952. Based on a suggestion by Lloyd Berkner, a member of the National Academy of Sciences (NAS), ICSU in 1952 started planning for an International Polar Year

> designed to study geophysical phenomena in remote reaches of the planet. The Council agreed that July 1, 1957 to December 31, 1958, would be the period of emphasis in polar research... Late in 1952, ICSU expanded the scope of the scientific re-

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> search effort to include studies that would be conducted using rockets with instrument packages in the upper atmosphere and changed the name to the International Geophysical Year (IGY) to reflect the larger scientific objectives.[1]

It was timed to coincide with the high point of the eleven year cycle of sunspot activity. Global activities were planned. In March 1953, NAS created a United States National Committee to oversee the IGY Projects of the United States. In 1954 "the Council adopted another resolution calling for the launch of artificial satellites during the IGY to help map the Earth's surface. The Soviet Union immediately announced plans to orbit an IGY satellite."[2] On July 29, 1955, President Eisenhower announced that the United States planned to launch Earth circling satellites as its part of the IGY. Again in keeping with the President's decision to distance satellites from the U.S. military program, the scientific satellite Vanguard was chosen. It was planned for launch aboard a modified Viking rocket as a first stage with an Aerobee-Hi as the second stage.

During the days of the Cold War, President Dwight D. Eisenhower called for an "open skies" policy[3] and had asked the Soviets to join in this declaration. The Soviets refused claiming it was a U.S. attempt to accumulate target information. President Eisenhower was concerned because the Soviets had acquired the capability to carry atomic bombs on missiles (the first H-bomb dropped from an aircraft). "That event intensified the 'Cold War' and affected the President greatly. It focused his attention increasingly on the ramifications of intercontinental nuclear war and the near total absence of reliable intelligence on the U.S.S.R."[4] He, therefore, agreed to a U.S. covert surveil-

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[1] Roger D. Launius, *Prelude to the Space Age*, *in* 1 EXPLORING THE UNKNOWN: SELECTED DOCUMENTS IN THE HISTORY OF THE U.S. CIVIL SPACE PROGRAM 21 (John M. Logsdon, NASA-SP-4407 1995). IGY was comprised of scientists from 67 nations who agreed to observe the earth over its whole surface.

[2] *Id.*

[3] For a more detailed discussion of this period, *see* R. Cargill Hall, *The Origins of U.S. Space Policy: Eisenhower, Open Skies, and Freedom of Space*, *in* 1 EXPLORING THE UNKNOWN: SELECTED DOCUMENTS IN THE HISTORY OF THE U.S. CIVIL SPACE PROGRAM 213 (John M. Logsdon, NASA-SP-4407 1995).

[4] R. Cargill Hall, *Sputnik, Eisenhower, and the Formation of the United States Space Program*, 14 (4) QUEST: THE HISTORY OF SPACE FLIGHT 32 (2007).

lance program of the U.S.S.R. but insisted again that it had to be carried out by civilians, not in military aircraft, and not by any military personnel in uniform. Hence, the U2 program was instituted[5] and the project assigned to be conducted by the Central Intelligence Agency (CIA)[6] with the high altitude meteorological research program of the National Advisory Committee for Aeronautics (NACA)[7] as its stated purpose, if and when called upon to explain its existence.

> With his own interests focused on national security space applications, President Eisenhower was of a mind to consign all American spacefaring — in which intelligence satellites figured most prominently — to the Department of Defense's ARPA. Killian, supported by Vice President Richard Nixon and others, persuaded the President that scientific satellites would not be supported in that venue, that a civilian space agency was the better choice, and that the National Advisory Committee for Aeronautics (NACA) should serve as the nucleus on which to found it. With the assistance of NACA director Hugh L. Dryden, they assigned the task of drafting legislation for the proposed civilian space agency to NACA's general counsel Paul G. Dembling. His measure, endorsed by Killian and Eisen-

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[5] President Eisenhower approved development of the U-2 on November 24, 1954 and the first U-2 was airborne on August 6, 1955.

[6] According to Eisenhower's staff secretary, then Colonel Andrew Goodpaster, Eisenhower assigned the U-2 mission to the CIA for three reasons. First, he thought it would be less provocative if a civilian pilot, rather than a military one, flew the aircraft into foreign territory. Second, he wanted the product - the reconnaissance photographs - to be evaluated at the national leadership level, as opposed to being evaluated within the military services. Based on his long years of experience in the military, Eisenhower knew that the military had an incentive to interpret intelligence to its advantage. Finally, he was concerned about not antagonizing the Soviets by pursuing a provocative program in the open. He was concerned that the military would pursue the program in a way that would only escalate tensions between the superpowers.

Dwayne A. Day, *Cover Stories and Hidden Agendas: Early American Space and National Security Policy*, *in* RECONSIDERING SPUTNIK: FORTY YEARS SINCE THE SOVIET SATELLITE 164 (John M. Logsdon et al. eds., Harwood Academic Publishers 2000).

[7] 38 Stat. 930 (1915). NASA inherited the U-2 meteorological program from NACA and continued to act as its "front" organization.

hower and submitted to Congress on 2 April 1958, passed essentially as first drawn.[8]

NASA CREATED

The National Aeronautics and Space Act of 1958[9] created a civilian agency with broad powers to plan and coordinate the efforts of this nation in matters relating to aeronautical and space activities. The Act establishes the basic national policy and the organization to implement this policy. Under this law, exploration of space is a Government program. In declaring the policy and purposes of the Act, the Congress stated that activities in space should be devoted to peaceful purposes for the benefit of all mankind[10] and that general welfare and security of the nation require that adequate provision be made for aeronau-

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[8] *See* Hall, *supra* note 4, at 37. James R. Killian was President of the Massachusetts Institute of Technology (MIT) when President Eisenhower appointed him to the new White House post, of Special Assistant for Science and Technology - and as such, the first Science Advisor to Presidents. At the time, several departments and agencies sought the nomination to conduct the new space program: NACA, the Atomic Energy Commission, the Army, and the Department of the Air Force. NACA was a logical selection. "It already existed. Its technical personnel were "as occupied with space and missile projects as with aeronautic ones and they had acquired considerable skill in the field," it had a long history of working with the military services and with the aircraft, air engine, and airline industries. JOAN LISA BROMBERG, NASA AND THE SPACE INDUSTRY 36 (Johns Hopkins University Press 1999). For background on the drafting of the bill which became the National Aeronautics and Space Act of 1958, *see* Edward S. Goldstein, Gregory C. LaRosa and David S. Schuman, *Present at the Creation: Paul G. Dembling, Author of NASA's Founding Legislation*, *in* NASA: 50 YEARS OF EXPLORATION AND DISCOVERY 50-53 (Faircount 2008). *See also* Dembling Archives, *available at* www.law.gwu.edu/Burns/rarebooks/spcol_Dembling.htm (last visited Oct. 21, 2008).

[9] 72 Stat. 426, Pub. L. No. 85-568, 85th Congress (1958) (hereinafter Space Act).

[10] *See also* H.R. 332, 85th Cong (1958). The Resolution expresses the sense of the Congress that the United States should, through international agreement or other appropriate means, seek to ban the use of outer space for military purposes, and provide for joint exploration of outer space, and establish methods to settle disputes which may arise. President Eisenhower, on January 12, 1958, in a letter to Nikolai Bulganin, stated, "I propose that we agree that outer space should be used only for peaceful purposes." Later, the Treaty on Principles Governing the Activities of States in the Exploration and Use of Outer Space, Including the Moon and Other Celestial Bodies, January 27, 1967 called for the exploration and use of outer space be conducted for peaceful purposes. *See* Treaty on Principles Governing the Activities of States in the Exploration and Use of Outer Space, including the Moon and Other Celestial Bodies, Jan. 27, 1967, 610 U.N.S.T. 205. *See also,* Dembling and Arons, *The Evolution of the Outer Space Treaty*, 32 J. AIR L & COM. 419 (1967), *and* P.G. DEMBLING MANUAL ON SPACE LAW 1, ch.I (Nandasiri Jasentuliyana and Roy S.K. Lee, eds., Oceana Publications 1979).

tical and space activities.[11] These activities are made "the responsibility of and are to be directed, by a civilian agency exercising control over aeronautical and space activities sponsored by the United States."[12]

The Congress declared that the general welfare and security of the United States required that adequate provision be made for aeronautical and space activities. The purposes for which the aeronautical and space activities are to be conducted by the United States include (1) the expansion of human knowledge of phenomena in the atmosphere and space; (2) the development, operation, and improvement of aeronautical and space vehicles; (3) the establishment of long-range studies of the potential benefits to be gained from the opportunities for, and the problems involved in, the utilization of aeronautical and space activities for peaceful and scientific purposes; (4) the making available discoveries of military value to the national defense agencies and for those agencies to make available to NASA, discoveries of value and significance to it; (5) the preservation of this nation as a leader in aeronautical and space science and technology; (6) cooperation with other nations in this work and in the peaceful application of the results; and (7) the most effective utilization of the scientific and engineering resources of the nation.[13]

During the clearance process of the Bureau of the Budget (now Office of Management and Budget)[14] several changes were made to the original draft as submitted by NACA. The most significant change was the insistence of the Department of Defense for a role in outer space activities controlled by the Fed-

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[11] Space Act, *supra* note 9, § 103 (1) defines "aeronautical and space activities" as "(A) research into, and the solution of, problems of flight within and outside the earth's atmosphere, (B), the development, construction, testing, and operation for research purposes of aeronautical and space vehicles, and (C) such other activities as may be required for the exploration of space."

[12] *Id.* § 102(b).

[13] *Id.* Certain language changed and added over the course of years but the core purposes remain.

[14] The White House's Budget Office has required federal departments and agencies to submit proposed legislation, among other materials, to it before being forwarded to the Congress. This is in order to assure that the items are in accord with presidential policies and programs.

eral Government. This resulted in the following language that was adopted:

> except that activities peculiar to or primarily associated with the development of weapons systems, military operations, or the defense of the United States (including the research and development necessary to make effective provision for the defense of the United States) shall be the responsibility of, and shall be directed by the Department of Defense....[15]

NASA FUNCTIONS

My purpose, when drafting the bill, was to assure that the organization would have all authority it would need to perform the functions prescribed or that might be assigned to it. The goal was to make and maintain this nation preeminent in outer space activities.

The civilian National Aeronautics and Space Administration[16] was created by Section 202 of the Act and is headed by an Administrator assisted by a Deputy Administrator. Carrying out President Eisenhower's decision that the nation's space activities should be performed by a civilian organization, this Section provides that the Administrator and the Deputy Administrator shall be appointed from civilian life by the President. Furthermore, the Act prohibited the Administrator and his Deputy from engaging "in any other business, vocation, or employment while serving as such."[17]

The Act assimilates into NASA the National Advisory Committee for Aeronautics, the agency which, since its establish-

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[15] *Id.*

[16] Eilene Galloway, National Defense Analyst, Library of Congress on detail to Senator Lyndon B. Johnson, then chairman of the Senate Preparedness Investigation Subcommittee of the Senate Armed Services Committee was asked for her advice by Representative John McCormack, the then majority leader of the House of Representatives. She recommended that NASA be an "Administration" instead of an "Agency" and the head of the organization be designated as "Administrator." Her recommendation was accepted by both Houses of the Congress. *See* Eilene Galloway, *Sputnik and the Creation of NASA: A Personal Perspective*, *in* NASA: 50 YEARS OF EXPLORATION AND DISCOVERY 48 (Faircount 2008).

[17] Space Act, *supra* note 9, § 202(c).

ment by the Congress in 1915,[18] had been the nation's aeronautical research establishment.[19] The Act provides that NACA would cease to exist as of the date the Administrator of NASA announced that his organization was organized and ready to exercise its powers, but not later than 90 days after approval of the Act. Section 301 states that on that date "all functions, powers, duties, and obligations, and all real and personal property, personnel (other than members of the Committee), funds, and records of that organization shall be transferred to the Administration."[20]

Also, the Act deals with the transfer of other functions. For a period of four years, the President could transfer to NASA "any functions (including powers, duties, activities, facilities, and parts of functions) of any department or agency of the United States, or of any office or organizational entity thereof, which relate primarily to the functions, powers, and duties of the Administration...."[21] In connection with such transfer, the President may also transfer records, property, civilian personnel, and funds.[22]

The Act provides that it shall be the function of NASA to plan, direct, and conduct aeronautical and space activities, to arrange for participation by the scientific community (both in

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[18] *See supra* note 7.

[19] NACA's installations were: Langley Research Center, Virginia; Lewis Research Center, Ohio; Ames Research Center, California; Dryden Flight Research Center, California; Wallops Island Flight Facility, Virginia, in addition to the NACA Headquarters in Washington, D.C. On September 30, 1958, NACA personnel totaled 8,000.

[20] On October 1, 1958, the Administrator announced that NASA was organized and ready to exercise its powers. Space Act, *supra* note 9, § 301(a).

[21] *Id.* § 302.

[22] Under this provision, the President issued Executive Order 10783 October 1, 1958 transferring from the Department of Defense responsibility for non-military space projects such as lunar probes and scientific satellites. The Order also transferred Project Vanguard, the United States Scientific Satellite Program which had been the Navy's responsibility. Executive Order 10793, promulgated on December 3, 1958, transferred from the Department of the Army the Government-owned facilities of the Jet Propulsion Laboratory of the California Institute of Technology. Under this authority Wernher Von Braun and his cadre of personnel of the Army Ballistic Agency were also transferred to NASA. As negotiator for NASA, this transfer was the most difficult. My position was that the Von Braun team, their special pay grades, and all their work were to be transferred. The Army rejected this view and we found ourselves before the Attorney General to decide whether a "transfer" was the same as a reorganization (my position). The Attorney General ruled that it was.

the United States and abroad) in certain of such activities, and to provide wide dissemination of information concerning such activities.[23]

In the performance of its functions, the Administration is authorized the following[24] (It should be noted that the functions, powers, duties, obligations, are provided to the "Administration" rather than to the head of the organization as is usually the legislative method for organic agency organizations. I drafted it in this fashion in order to avoid the continuing problem of determining whether a function given to the head of an organization is delegable):

- to make, promulgate, issue, rescind, and amend rules and regulations governing its operations and the powers vested in it.
- to appoint and fix the compensation of officers and employees needed to carry out its functions. [The Civil Service Commission (now the Office of Personnel Management) insisted that this authority be limited to a fixed number of senior personnel and all other personnel shall be appointed and compensated in accordance with civil service laws.]
- to acquire, use, and dispose of property and facilities. [The General Services Administration insisted that the disposal of property must be in accordance with the Federal Property and Administrative Services Act of 1949, as amended (40 U.S.C. 471 et req.)]
- to accept unconditional gifts of services or property. (During the Senate hearing, Senator Clinton Anderson strongly recommended the inclusion of the word "unconditional.")
- "to enter into and perform such contracts, leases, cooperative agreements, or other transactions as may be necessary in the conduct of its work and on such terms as it may deem appropriate..." with any governmental and non-governmental entity.

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[23] Space Act, *supra* note 9, § 203 (a).
[24] *Id.* § 203 (b).

- While it is common for Federal departments and agencies in their organic or authorizing statutes to be provided authority to enter into contacts, leases, and cooperative agreements, I wanted to assure that the organization met any contingency that might arise, and so I added the language for "other transactions." The Space Act, for the first time, authorized an agency, NASA, to enter into "other transactions." This authority is without limitation. Since such a transaction is not a procurement agreement, it is not subject to the laws, regulations, and other requirements applicable to contracts, leases, cooperative agreements. It is this flexibility which provides authority to structure agreements in accordance with standard business practices.[25]

The Act also provides that contracts shall be allocated in a manner to enable small business to participate equitably and proportionately in the work of NASA,

- to use facilities and other resources of Federal and other agencies, and to cooperate on a similar basis with such agencies ("Each department and agency of the Federal Government shall cooperate fully with Administration in making its services, equipment, personnel, and facilities available to the Administration; and any such department or agency is authorized, notwithstanding any other provision of law, to transfer or to receive from the Administration" vehicles, supplies, and equipment[26];
- to appoint advisory committees;
- to establish procedures for coordinating activities with related activities by other public and private organizations;
- to employ experts and consultants;
- to employ aliens when determined by the Administrator to be necessary;
- to employ retired commissioned officers of the Armed Forces;

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[25] For a detailed account of NASA's use of this authority, *see* David S. Schuman, *Space Act Agreements: A Practioner's Guide* , 34(2) J.SPACE L. 277 (2008).

[26] Space Act, *supra* note 9, § 203(b)(6).

- to enter cooperative agreements by which members of the Armed Forces may be detailed for duty in NASA to the same extent as they might be assigned in the Department of Defense; and
- to settle and pay claims against the United States for injury or death resulting from activities of the Administration, within certain monetary limits.

SCIENTIFIC OR TECHNICAL CONTRIBUTIONS

Section 306 authorized the Administrator to make monetary awards for scientific or technical contributions which are determined to have significant value in the conduct of aeronautical and space activities. Each proposal for award shall be referred to the Inventions and Contributions Board for hearing and the Board shall transmit to the Administrator its recommendation as to the terms of the award, if any. The Administrator, in determining the terms and conditions of any award shall consider the value of the contribution to the United States; the total amount that had been expended in developing the contribution; and the amount of compensation previously received by the contributor (other than salary received for services rendered as an officer or employee of the United States Government).

NATIONAL AERONAUTICS AND SPACE COUNCIL

The bill that was sent to the Congress by President Eisenhower did not contain a provision for a National Aeronautics and Space Council. When the bill came to the Senate Special Committee on Space and Astronautics chaired by Senator Lyndon B. Johnson, the Majority Leader, he proposed a National Aeronautics and Space Council[27] using the National Security Council as its model. He also envisioned the two councils would have equivalent status. It was a presidential-level policy board.

> It was composed of the President (who shall preside over meetings of the Council); the Secretary of State; the Secretary of Defense; the Administrator of the NASA; the Chairman of the

[27] This became § 201 of the Space Act. *See* Space Act, *supra* note 9, § 201.

> Atomic Energy Commission; not more than one additional member appointed by the President; from the departments and agencies of the Federal Government; and not more than three other members appointed by the President; solely on the basis of established records of distinguished achievement from among individuals in private life who are eminent in science, engineering, technology, education, administration, or public affairs.[28]

All the members of the Council were required to be appointed "with the advice and consent of the Congress" unless already serving in a position which required such action by the Senate. The functions of the Council were to

> survey all significant aeronautical and space activities, including the policies, plans, programs, and accomplishments of all agencies of the United States engaged in such activities; develop a comprehensive program of aeronautical and space activities to be conducted by agencies of the United States; designate and fix responsibility for the direction of major aeronautical and space activities; [and to] provide for effective cooperation between the National Aeronautics and Space Administration and the Department of Defense in all such activities.[29]

and specify which of such activities would be assigned to each or both of these organizations. This Section of the Act specified the duties of the President to include surveying of all significant aeronautical and space activities, develop a comprehensive program, designate and fix responsibility for the direction of major aeronautical and space activities, to provide for effective cooperation between NASA and the Department of Defense, and if there were differences among the departments and agencies, the President would resolve such differences including "whether a particular project is an aeronautical and space activity."[30]

When Senate Majority Leader Lyndon B. Johnson was elected Vice President, he asked that, in view of his background and interest in space activities, the Vice President be named Chairman of the National Aeronautics and Space Council. Legis-

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[28] *Id.* § 201(a).
[29] *Id.* § 201 (e)(1)-(4).
[30] *Id.* § 201 (e)(5).

lation was enacted to reflect that change. President John F. Kennedy and Administrator James E. Webb, however, were concerned that in that position, the Vice President would engulf NASA. The President and the NASA Administrator discussed how to limit the ability of the Space Council Chairman to do so. Administrator Webb suggested, and the President agreed, that the President would issue a rule that stated that the Council could consider only the agenda established by the President. Limited in this fashion, the Council was relegated to minor matters. As a result, the National Aeronautics and Space Council was finally abolished together with its functions effective July 1, 1973.[31]

CIVILIAN-MILITARY LIAISON COMMITTEE

A review of the hearings indicates emphasis on securing cooperation and coordination of aeronautical and space activities between the military departments and the new agency.[32] For these purposes, the Act provided for a Civilian-Military Liaison Committee headed by a Chairman appointed by the President and composed of an equal number of representatives from both the military departments and from NASA.[33] NASA and the Department of Defense, acting through the Liaison Committee, would advise and consult with each other on all matters within their jurisdictions having to do with aeronautical and space activities, keep each other fully and currently informed on these activities, and strive to reach agreement on differences which might arise in this area between the two agencies. If the Secretary of Defense and the Administrator fail to reach agreement on any difference, then either official may refer the matter to the President for final decision. The Act also provided that the NASA Administrator and the Secretary of Defense may seek

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[31] Reorganization Plan No.1 of 1973 §3(4) represented as 87 Stat. 1089, 1090, transmitted Jan. 26, 1973, 38 Fed. Reg. 9579 (Apr. 18, 1973).

[32] H.R. 11881 before the House Select Committee on Astronautics and Space Exploration and Hearings before the Senate Special Committee on Space and Astronautics, 85th Cong, 2d Sess (1959).

[33] Space Act, *supra* note 9, § 204 (a). This Section provides for the Committee to be composed of one or more representatives from the Department of Defense, and one or more representatives from each of the Departments of the Army, Navy, and Air Force, and an equal number from NASA.

solutions to questions of jurisdiction either directly or through the Liaison Committee and to hold to a minimum the questions referred to the President and the Space Council.

"Historian Robert MacGregor points to the parallels between the Atomic Energy Commission and NASA and further argues that NASA's rise in the 1960's as an engine of American International prestige was rooted in atomic diplomacy and that certain debates in Congress about the new agency were largely approached from within a framework of atomic energy...."[34] This is borne out. House Majority Leader John McCormack, as Chairman of the Select Committee on Astronautics and Space Exploration considering the bill, urged the adoption of a Civilian-Military Liaison Committee. He based his argument on the fact that space was the new hostile environment confronting the nation, similar to atomic energy, a few years previously. When he, and the Congress, were considering the bill which became the Atomic Energy Act of 1954, his approach, then, as with the Space Act, was to provide for such a Committee.[35]

INTELLECTUAL PROPERTY

The original Administration bills[36] contained no provisions relating to patents, leaving the questions of securing rights in invention to the discretion of the agency operating under the general principles of law and regulations adopted by each agency. There was no discussion in the Congressional hearings of the patent provisions as they were enacted into law. In fact, all of the testimony taken before both Congressional Committees related to bills not having any special patent clauses.[37]

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[34] Steven J. Dick, *From the Chief Historian*, 25 NEWS & NOTES 5 (May 2008).

[35] The Civilian-Military Liaison Committee together with its functions was abolished, effective, July 27, 1965, by Reorganization Plan No. 4 of 1965, §1(e), 30 Fed. Reg. 9353 (1965), *reprinted in* 79 Stat. 1321.

[36] H.R. 11811, S. 3609, 85th Cong (1958).

[37] During the Senate Hearings, Senator Anderson queried Deputy Secretary of Defense Donald A. Quarles on the absence of any patent provisions in the Administration bill. Mr. Quarles replied that it had been assumed in the Department of Defense that the new agency would utilize "the same kind of patent provisions that our own work carries with it." In a statement furnished for the record Mr. Quarles elaborated on this point. The statement outlined the broad policy of the Department of Defense of taking only license rights under research and development contracts and indicated that NACA policies and

The result of discussions among the members of the House and the Senate Committees and between the leaders of both Committees, was that special patent provisions were needed. The Administration bill was replaced in the House by a new bill H.R. 12575, which contained provisions related to patent rights,[38] Senate 3609, as amended and reported out by the Senate's Special Committee, contained patent provisions similar to those contained in H.R. 12575; these were eliminated from the bill on the Senate floor in order to permit further consideration of the problem in conference.[39] In conference, the staff members were assigned to draft appropriate patent provisions. These were rewritten and expanded, using the Atomic Energy Act provisions as a model. Therefore, they differ greatly from those followed by most of the other Federal departments and agencies.

The Space Act provides that inventions which are made in performance of work under NASA contracts shall become the exclusive property of the United States whenever the Administrator determines that (1) the person who made the invention was employed or assigned to perform research and development or exploratory work and the invention is related to such work or was within the scope of his employment duties, whether or not the invention was made during working hours or with a contribution of Government funds or facilities or the services of Government employees during working hours; or (2) the person who made the invention was not so employed or assigned but the invention is nevertheless related to the contract or to the work or duties he was employed or assigned to perform and was made during work-

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procedures were similar to those of the Defense Department. The statement concludes that since these policies and procedures had provided the Defense Department with an adequate basis for handling patent matters there was no need for special patent provisions in the proposed legislation. The patent policies of the Department of Defense are located in the DoD Supplement to the Federal Acquisition Regulation (FAR) at title 48, Chapter 2, Part 227 of the Defense Acquisition Regulation System.

[38] H.R. 12575 § 507, 85th Cong. (1958), vested title in the Government to inventions made under NASA contacts unless the Administrator waived such rights. In the event of waiver, the Administrator was to retain the full right to the use of the invention or discovery and to license others to use it in carrying out NASA's functions under the Act, for which the Administrator was authorized to pay reasonable royalty fees. Where the agency's claim was not waived, the Administrator was authorized to pay the inventor a cash award.

[39] Cong. Rec. 10233 (daily ed. June 16, 1958).

hours or with Government contributions. Since 1980, rights in inventions made by businesses, colleges, universities, and non-profit organizations in performance of federal funding agreements (contracts, grants, and cooperative agreements) have been subject to the provisions of the Bayh-Doyle Act as amended Pub. L. No. 96-517, 1980, 35 U.S.C. 200 et. seq.)[40] The Administrator may waive title to any invention or class of inventions made by any person or class of persons in the performance of any work under any NASA contract if the Administrator determines that waiver would serve the interests of the United States and upon such terms and conditions which will protect the United States' interests. While the Administrator may waive title, the Government must retain, under the provisions of the Act an irrevocable, nontransferable, royalty free license for the practice of such invention throughout the world by or on behalf of the United States or any foreign government pursuant to any treaty or agreement with the United States.

The Congress mandated the establishment of an Inventions and Contributions Board. One of its functions is to consider each proposal for any waiver. "Such Board shall accord to each interested party an opportunity for hearing, and shall transmit to the Administrator its findings of fact with respect to such proposal and its recommendations for actions to be taken with respect thereto."[41]

The Act also provides that "No patent may be issued to any applicant other than the Administrator for any invention which appears to the Commissioner of Patents[42] to have significant utility in the conduct of aeronautical and space activities...."[43] Procedurally, no patent shall be issued for such an invention unless the applicant furnishes the Commission within 30 days of his application a sworn statement setting forth the full facts concerning the circumstances under which such invention was made and stating the relationship (if any) of such invention to

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[40] Space Act, *supra* note 9, § 305 (a)(1)-(2).

[41] Space Act, *supra* note 9, § 305(f). Section 305(a) now applies only to large business.

[42] Pursuant to Section 3 of Pub. L. No.93-596, 88 Stat. 1949 (Jan. 2, 1975), the "Commissioner of Patents" means "Commissioner of Patents and Trademarks."

[43] Space Act, *supra* note 9, § 305(c).

the performance of any work under any NASA contract. This statement is furnished to the Administrator who may, within 90 days, request that the patent be issued to him on behalf of the United States.

The provision has led some to hold that the Act permits the Administrator to take ownership to *any* invention which has significant utility in the conduct of aeronautical and space activities.[44] It appears to this writer that this subsection should be read in conjunction with the preceding subsections 305(a) and (b). Thus read, the Administrator could take title only when there was a contractual relationship with the NASA. The conference report appears to support this interpretation since it discusses subsections 305(c) and (d) as providing a means for determining "any controversy with respect to the validity of the Administrator's claim of title to any invention."[45] If the Administrator requested title to be vested in the United States regardless of any contractual relationship to NASA, it was not clear from Section 305 whether the Commissioner of Patents could do so.

The Act also provides for notice to the applicant and a hearing before the Board of Patent Interferences and determination by the Board, subject to appeal to the Court of Customs and Patent Appeals. The Administrator may during a five-year period challenge any applicant's statement as containing a false representation of material fact and request transfer of title to the patent to him. Such transfer will take place unless within 30 days after receipt of notice by the patent owner he requests a hearing before the Board of Patent Interferences.

INTERNATIONAL COOPERATION

Section 205 provides that NASA, "under the foreign policy guidance of the President, may engage in a program of interna-

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[44] Wilson R. Malthy in his article on the patent provisions of the National Aeronautics and Space Act of 1958 states: "In the new Act the control by the Administrator is not limited to situations of financial support or use of Administration equipment and facilities, and the restrictive provisions become applicable merely upon a finding of significant utility in aeronautical and space activities." Wilson R. Mathy, *The National Aeronautics and Space Act of 1958 Patent Provisions,* 27 GEO. WASH. L. REV. 45 (1958).

[45] CONFERENCE REPORT - STATEMENT OF THE MANAGERS ON THE PART OF THE HOUSE. H.R. REP. NO. 2166, 85th Cong., 2d Sess. 23 (1958).

tional cooperation in work done pursuant to the Act, and in the peaceful application of the results thereof, pursuant to agreements made by the President with the advice and consent of the Senate." This language is the result of the objection that the Department of State had with the open-ended authority sought for the new organization. Even though this represented the agreed upon provision by the Executive and Legislative Branches, President Eisenhower felt it necessary, on July 29, 1958 upon signing the Act to single it out and make the following statement regarding Section 205: "I regard this section merely as recognizing that international treaties may be made in this field, and as not precluding, in appropriate cases, less formal arrangements for cooperation. To construe the section otherwise would raise substantial constitutional questions." Thus, Section 205 of the Act provided the legislative basis for establishing a long-range and continuing program in the field of international cooperation.

ACCESS TO INFORMATION

Section 303 provided that information obtained or developed by NASA shall be made available for public inspection, except if (a) protected by Federal Statute or (b) classified to protect national security. This provision, strongly recommended by Congressman John E. Moss, was the precursor of the Freedom of Information Act.[46]

SECURITY

Section 304 authorized the Administrator to "establish such security requirements, restrictions, and safeguards as he deems necessary in the interest of national security."

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[46] 5 U.S.C. §552. The Act was signed into law by President Lyndon B. Johnson on July 4, 1966. The Act defines agency records subject to disclosure and outlines mandatory disclosure procedures. It also allows for the full or partial disclosure of previously unreleased information and documents controlled by the U.S. Government. Congressman Moss championed the Freedom of Information Act, which he authored, through multiple sessions of the House of Representatives, where he served from 1953 to 1978.

It also authorized the Atomic Energy Commission to grant access to Restricted Data relating to aeronautical and space activities to NASA employees, contractors, or licensees when necessary in the performance of their duties.

REPORTS TO THE CONGRESS

Section 206 provided for NASA to submit "to the President for transmittal to the Congress" at least semi-annually, "a report of its activities and accomplishments." The Section also requires the President to report to Congress each January describing "the activities and accomplishments of all agencies of the United States" engaged in aeronautics and space activities during the preceding calender year and to evaluate these against the requirements of Section 102(e), which states that the aeronautical and space activities of the United States shall be conducted so as to contribute materially to one or more of the objectives set forth in the Act.

IN RETROSPECT

Fifty years ago the Space Act created

> a new federal agency... to accomplish feats of exploration and discovery unparalleled in human history. The men and women of NASA have been responsible for such epic achievements as landing twelve human explorers on the moon, sending robots to scout the solar system from Mercury to Pluto, and making revolutionary discoveries about the nature of our universe. Closer to home, people have reaped enormous benefits from NASA's communications, weather, and Earth monitoring satellites, and the agency's continued commitment to excellence in aeronautics research. Our quality of life has been improved by thousands of new technologies derived from NASA research...NASA's past is only the prelude to an adventure truly without end.[47]

Looking back on this 50-year record, I am extremely pleased to have been able to make a contribution to these efforts.

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[47] Michael D. Griffin, *Message from the NASA Administrator*, *in* NASA: 50 YEARS OF EXPLORATION AND DISCOVERY 16 (Faircount 2008).